



POLICE DEPARTMENT

December 4, 2025

-----X
In the Matter of the Charges and Specifications :

- against - :

Captain Gene Ryerson :

Tax Registry No. 949597 :

Drug Enforcement Task Force :

Case No.

C-031765

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For CCRB- APU:

Nicole Jardim, Esq.
Daniel Hafner (*Law Student Practitioner*)
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Louis La Pietra, Esq.
La Pietra & Krieger, P.C.
30 Glenn Street, Suite 105
White Plains, NY 10603

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Captain Gene Ryerson (Lieutenant Gene Ryerson at the time of this incident), on or about August 17, 2021, at approximately 0620 hours, while assigned to the Narcotics Borough Bronx and on duty, in the vicinity of [REDACTED] wrongfully used force, in that Captain Ryerson pointed his gun at Complainant without police necessity.

P.G. 221-01¹

FORCE GUIDELINES

P.G. 200-02

MISSION, VISION, AND
VALUES OF THE NYPD

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 30, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The Civilian Complaint Review Board presented a hearsay case, introducing cell phone and surveillance video footage, as well as the CCRB interview of Complainant. In addition to testifying on his own behalf, Respondent called Detective Saeed Nieves and Deputy Inspector Chase Maneri as witnesses. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of the charged misconduct.

ANALYSIS

This case arises from a complaint made to the Civilian Complaint Review Board by

[REDACTED] ("Complainant"). The following facts are undisputed. On August 17, 2021, at

¹ In the original charging instrument, CCRB cited P.G. 221-02, Page 3, Prohibition 2 (Force Guidelines). It is the note that immediately precedes Prohibition 2 in P.G. 221-01 that deals with drawing a firearm--the issue in this case. CCRB specifically invoked this language during the trial. The tribunal has analyzed this case under that framework.

approximately 0620 hours, Respondent and several other officers, including Deputy Inspector Chase Maneri,² went to Complainant's home. Respondent and his team possessed a valid federal material witness arrest warrant³ for Complainant's son, Rudolph Fyffe, who resided there. The officers knocked on the door for several minutes, during which time Complainant and the other occupants yelled that they were not going to let them in. Eventually the officers forced open the door with a breaching tool. Respondent was the first officer to come through the door. He carried a ballistic shield in his left hand and his Department-issued firearm in his right, which he holstered after approximately four seconds. There is a dispute as to whether Respondent pointed his gun at Complainant during this time. The officers left a few minutes later, after discovering that Mr. Fyffe was not present. (Tr. 51-52, 79-86; CCRB Ex. 1, *cell phone footage*; CCRB Ex. 2, *surveillance video*; CCRB Ex. 3A-3D, *complainant's interview*)

CCRB Exhibit 1: Complainant's Cellphone Footage

CCRB entered into evidence video of the incident recorded by Complainant on her cellphone. The footage shows a dark room with the outline of the front door, which is partially visible at the bottom of a short staircase.

0:00-0:24 Complainant stands on the stairs and aims her cellphone camera at the front door. She states, "And you better have a warrant too. You better have a warrant. Yeah, I'm not opening nothing." An officer replies, "Ma'am, you sound like an elderly lady. Will you please open the door? We don't want to have to break it. Please." Complainant speaks over the officer before pausing as he continues, "Open the door. I'll explain everything to you. Please

² On the date of this occurrence Respondent was a lieutenant and Deputy Inspector Maneri was a captain; they have both since been promoted.

³ 18 U.S.C. § 3144, "Release or Detention of a Material Witness," sets forth: "If it appears from an affidavit filed by a party that the testimony of a person is material in a criminal proceeding, and if it is shown that it may become impracticable to secure the presence of the person by subpoena, a judicial officer may order the arrest of the person and treat the person in accordance with the provisions of section 3142 (Release or Detention of a Defendant Pending Trial)."

open the door.” She responds, “I’m not opening no door, until you tell me who you’re looking for.”

- 0:25-0:57** The officer states, “We’ll tell you when I open the door.” Complainant shouts, “No!” Another woman agrees, “No! We know your f—king tricks.” Complainant continues, “I’m not opening no door. I’m recording everything. Break the door in, because I’m f—king tired of y’all cops and your f—cking way. Y’all taunting people. Y’all f—king banging on people’s doors. Y’all want people to do what? F—k out of here. I left the Bronx for a reason. Bang the door down. Kick it in, so I can call my f—king president, the borough president, every-f—king-body. I’m not opening my f—king door. I’m not opening my door. Harassing. Knocking on the door.” A loud banging sound can be heard as officers repeatedly hit the door with a breaching tool.
- 0:58-1:00** The officers break open the door, damaging the door frame.
- 1:01-1:03** Officers stand behind the threshold. Respondent, who is the first officer in line, is behind a ballistic shield. Several of the residents scream incoherently as Complainant repeatedly states, “Thank you.”
- 1:04-1:08** Respondent crosses the threshold with his firearm in his right hand, adjacent to the shield, as he shouts, “Let me see your hands!” He holds the firearm sideways and aims it downward at a 45-degree angle. A woman shouts, “Are you serious?” Respondent slowly lowers the firearm until it is no longer visible.

Complainant did not appear to testify in this matter. Instead, CCRB entered the audio recording and accompanying transcript of her August 25, 2021 telephone interview with CCRB Investigator Jones into evidence.⁴

Complainant recalled that at approximately 0620 hours on August 17, 2021, police officers knocked on her door, telling her that they possessed a warrant to apprehend her son, Rudolph Fyffe, and have him testify in court. She stated that there were six people in the apartment, including herself. According to Complainant, she repeatedly demanded to see the

⁴ During the telephone conversation, the parties got cut off several times, resulting in the interview being recorded in four parts, CCRB’s Exhibits 3A-D. Complainant’s daughter, Sheita Melvin, was also present during the interview.

warrant. She alleged that the officers refused and instead urged her to open the door. She explained that after a few minutes, the officers broke down the front door, damaging it and its frame. Complainant contended that the officers then entered the residence. (CCRB Ex. 3A at 4, 9-11, 17-18; CCRB Ex. 3C at 8)

Complainant alleged that “all” of the officers had their guns drawn and pointed at the residents while ordering them to put their hands up and “get down on the floor.” She described the male officer who entered the residence first as wearing a vest with his gun drawn and stood behind a shield. She recalled that this officer had a short haircut and was white, Hispanic, and approximately 5’6”. (CCRB Ex. 3B at 2-3, 14-16)

Complainant told the investigator that before the execution of the warrant, “[F]or days, I [was] feeling like something was going to happen because this lawyer told my son, ‘oh, you need to come. And if you don’t come, they’re going to send somebody.’” She acknowledged that officers had been to her home before to speak with her son, which she felt constituted “harassment.” She complained that “every time” she reported the harassment to CCRB they did nothing to assist her and told her, “oh, they have probable cause.” (CCRB Ex. 3A at 7, 17)

Respondent took the stand and testified that on August 17, 2021, he was a lieutenant in the Bronx Violent Crimes Squad. He stated that throughout his time in the Department, he has received extensive training in many areas, including the execution of warrants and when an officer may display their weapon. Respondent explained that in the context of a warrant, the term “bunker” refers to the officer who, “[has] the ballistic shield and [is] the first one through the door once the door is breached.” He described that, in addition to the shield, the bunker would normally wear a bulletproof vest and carry a firearm. (Tr. 79-81, 106-07)

According to Respondent, he was assigned to be the “bunker” during the execution of this warrant. He contended that prior to this occurrence, he had executed over a hundred warrants and had acted as the bunker before and characterized the experience as “terrifying.” When asked to elaborate, Respondent replied “because you don't know what you're encountering... You know, your heart rate is up. Anything could be behind the door.” (Tr. 79, 81)

With regard to this incident, Respondent recalled attending a tactical meeting during which he learned that Mr. Fyffe had “a violent history,” had been arrested many times, and that the lead investigator anticipated resistance and “aggression” from him. As he knocked on the door of the house, Respondent remembered hearing Complainant, as well as “several” male voices screaming, “[D]on’t open the door, don’t open that f—king door.” Respondent recalled walking through the threshold after the door had been forced open with the shield in his left hand and his gun in his right. He remembered considering, “[I]f I am to take fire, am I able to return fire.” Respondent explained that he saw people “yelling” on the stairs directly in front of him as he entered. He continued, “That's the threat area. So, I have the shield protecting me from any threats that could come from the stairs. And my firearm protecting me from any threats that can come from my right.” Respondent opined that his actions were consistent with the training he had received, which instructs officers that when “we enter a room the shield covers your left, and the firearm covers your right.”⁵ (Tr. 80-86, 102-03)

Respondent described holding his firearm in front of the ballistic shield, but denied pointing it at anyone, including Complainant. He contended that at one point in the cellphone footage, he could see the gun in his hand, and that it was pointed towards the floor. Respondent professed that he felt threatened because he believed the occupants would “be very unhappy

⁵ When asked, Respondent acknowledged that he is right-handed. (Tr. 117)

when we come through this door” and that they “might want to injure us.” However, during cross-examination, he admitted that none of the occupants of the house specifically threatened to harm the officers. (Tr. 84, 102-03, 115)

Deputy Inspector Chase Maneri took the stand and recounted being trained on making tactical warrant entries. He recalled that he was the captain overseeing the execution of the warrant on the date in question. Deputy Inspector Maneri explained that he was physically present during the execution of the warrant but stayed “off to the side, ensuring that it went smoothly.” He recounted standing somewhere in the front yard and hearing an “animated conversation” between the officers and the people behind the door. He recounted ordering the door to be “boomed” because he “started to feel that every second that went by felt less safe because we don't know what was going on behind that door.” (Tr. 51-52, 69)

During cross-examination, Deputy Inspector Maneri testified that in his training and experience, an officer assigned as the bunker would “always” have their firearm drawn during a warrant entry. He further explained, “They're the first ones in and they're facing potential ballistic threat. . . . They have a firearm out with a ballistic shield, ballistic helmet and ballistic vest. So, they're going to have the ballistic shield and firearm out.” (Tr. 66-68)

Detective Saeed Nieves was called to the stand and testified that he works as an instructor for the Detective Bureau, training officers in tactics related to executing search warrants. He acknowledged that he had not taught Respondent or Deputy Inspector Maneri. Detective Nieves explained that the two most dangerous positions during an entry are the breacher, who forcibly opens the door, and the bunker, who is the first to step over the threshold. He detailed that officers are trained that when they have to force open a door, there is a higher potential for serious physical injury, in part because they do not know what is going on behind a closed door.

He recounted that the individual acting as the bunker is trained to hold the ballistic shield in one hand while holding their firearm in their dominant hand. Detective Nieves further illustrated, “the shield’s job is to protect...If a threat comes your way, you need to be able to do something else...you need to be able to provide damage back.” (Tr. 29-30, 32, 34, 42-44)

Respondent stands charged with pointing his firearm at Complainant without police necessity, in violation of Patrol Guide section 221-01. Although he denies aiming his firearm at Complainant, Respondent admits that his gun was drawn as he entered the residence. Therefore, the issue before the tribunal is whether CCRB has proven, by a preponderance of the credible evidence, that no police necessity existed to justify Respondent’s drawing of his firearm. For the reasons set forth below, I find that they have not.

Patrol Guide section 221-01 provides officers with the following guidance with regard to the brandishing of their gun: “The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present... When a uniformed member of the service determines that the potential for serious physical injury is no longer present, the uniformed member of the service will holster the firearm as soon as practicable.” (P.G. 221-01, Page 3, Note)

The standard set forth in this Patrol Guide note applies to the execution of warrants, as well as vehicle and pedestrian stops. Warrant executions are inherently dangerous and this concern is heightened when, as here, the occupants are uncooperative, requiring officers to forcibly breach the door.

Complainant did not appear before the tribunal to testify. With regard to her interview with CCRB, it is well-settled that hearsay evidence is admissible in administrative proceedings and may form the sole basis for a finding of fact. However, the hearsay must be evaluated

carefully to determine whether it is sufficiently reliable. In the absence of live testimony, I carefully considered Complainant's prior unsworn statement, in conjunction with the other evidence presented at trial, and found her to be a somewhat unreliable storyteller.

For example, Complainant's assertion that Respondent and "all" of the officers on the scene of were pointing their guns and yelling at the occupants to get down on the floor was contradicted by the cellphone footage that she, herself, provided to the CCRB. That video showed Respondent coming through the door with his gun drawn at a forty-five-degree angle; the gun was holstered within four seconds. Contrary to her statements to the CCRB, the firearm was never aimed directly at Complainant, who was recording with her cellphone. The footage also shows one other female officer holding her firearm with the barrel pointed downward, as well as the other officers carrying flashlights, asking the residents to come down the stairs. No one in the home was placed on the ground and Complainant continued to move around the room, yelling insults at the officers.

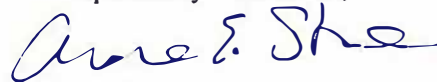
In addition, when speaking to the CCRB investigator, Complainant admitted that her son, Mr. Fyffe, lived with her and that she knew the police were looking for him. This was refuted by the cellphone footage which showed her telling the officers that he did not reside there. There may be reasons why Complainant was less than truthful with the officers banging on her door; however, without the benefit of in-person questioning and cross-examination about the inconsistencies between her statement and the video, it is difficult to credit her version of events.

In contrast, Respondent and Deputy Inspector Maneri each recalled legitimate safety concerns associated with this operation, and I credit their testimony. In addition to Mr. Fyffe's violent criminal history, the lead detective had been attempting to convince him to voluntarily appear to testify in her case. Mr. Fyffe was so uncooperative that a judicial officer issued a

warrant that authorized the NYPD to forcibly enter the residence and take him into custody. Once at the home, Respondent heard Complainant and other male occupants vehemently refusing to open the door. This was corroborated by both the cellphone footage, which showed men in the home, and by Deputy Inspector Maneri's description of "animated" voices coming from the house, all of which culminated in him ordering the team to forcibly open the door and enter the home. When viewed altogether, these facts articulate a basis for Respondent's belief that the potential for serious physical injury existed.

Respondent also testified about the Department training he received, as well as his extensive experience executing warrants. He had served as the "bunker" previously and was quite forthright when describing the experience as "terrifying." Respondent was well-versed in the tactical reasons for the first officer through the door having their gun drawn in addition to carrying a ballistic shield. This was corroborated by Detective Nieves, who testified knowledgably about the Department training that the bunker officer has their firearm drawn during a forcible warrant entry. Finally, the video footage revealed that Respondent holstered his weapon within four seconds of entering the residence, which is consistent with the Patrol Guide requirement that officers put away their guns as soon as they determine that the threat no longer exists. For the foregoing reasons, I find Respondent Not Guilty of the charged misconduct.

Respectfully submitted,



Anne E. Stone

Assistant Deputy Commissioner Trials

APPROVED

MAR 20 2020

JESSICA S. TISCH
POLICE COMMISSIONER